Translation.

Memorandum of the principle of the course of actions taken towards the aboriginal territory of Formosa.

(No. 1)

On the 30th of the ninth month, the Tsung-li-Yamen returned an answer the principal points of which are as follows:

"The matter of a dependent territory of a state cannot be guessed by the capricious conjecture. The government and laws of a state, too, cannot be cavilled by another state being dissatisfied of them. Your present question and the accompanying note could be cleared up, by

"reference to our late explanations. We have a treaty of friendship, concluded with your government, and we hope that you will only abide by its provisions. This is truly our plain answer."

On the fourth of the tenth month, the ambassador Okubo again sent a despatch to the Tsung-li-yamen, the summary of which is as follows:

"There are many evidences to prove that the government of your country does not extend to the aboriginal territory, although you argue by the empty name of territory. You must then remember, that there are almost numberless independent states in the world and the islands lying scattered off the coasts of these several states are indeed countless.

If

If then you could conclude, that an isle lies within the territory of a State, only on account of its geographical position, what evidence have you of its really being so? The name of territory only results from the fact, that a State really exercises its sovereignty there. If, however, you would assume the name, independently of the fact, you may also assume that the whole world lies within the dominion of your government. This concluded we to decide the present question by the law of nations and not by the provisions of the treaty. But, unexpectedly for me, you did not return any plain answer to my question. Upon discussions, pretending to preserve the friendly relation between the two States, shall prolong indefinitely the settlement of the present matter. This is not a manner to settle mutually, by the candid and harmonious consultations. Besides, you have maintained your one-sided opinion and accused our government, of the invasion of your territory and the violation of the treaty, mainly citing its provisions. Can it be right that these are words uttered by a friend?

On the fifth of the fourth month, the ambassador Okubo with his suite went to the Tsungli Yamen and there held a conference with the Chinese high officials, to enforce them, of the security

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obscurity of the late answer (of the 30th) which the Chinese officials replied as follows: "The position of your government in affirming, that the aboriginal territory lies without our jurisdiction, is contrary to the friendly spirit. When we should have been asked by a foreign state to take the proper measures, for the affairs concerning any part of our dominion, We would have satisfied this desire, though there might be necessarily some difference according to the circumstances as to the speed and facility, with which the measures could be taken. You have adduced a note sent by an official of Taiwan-foo to the American consul at amoy as an

evidence bearing on the present matter, but it originated in the desire of this local officer to evade his responsibility and to throw it on the head of the American consul, for which offense this local officer was then punished. We hope now to lay aside the foreign evidence and to know the Japanese one. When, in the last year, the Japanese ambassador came to Pe-king, he delivered us no official despatch, and we had thus nothing to transact mutually. This should be the case, not only for your country but for every other country. Our government would not take the measures, hearing the words of a party only, but would require the demands of the both parties, to compare them

" them together. Mr. Sagoshima
" did not come to see yamen
" himself, but sent his words thro-
" ugh his secretary, but they relat-
" ed not only to the affairs of
" the aboriginal Formosa but also
" to those of Corea and the others.
" But the discussion stopped here.
" After the communication by Mr.
" Yanagihiwara, Mr. Sagoshima re-
" mained still for a long while
" at Peking, but he said then no
" word about the present matter.
" Would we have then the reason
" to inquire after his silence on
" our part? The question of the
" interference by a foreign state
" is not a new one, which we
" have explained several times to
" Mr. Yanagshiwara. If you would
" adduce the despatch sent to the

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" American consul at Amoy, or
" an evidence, there are several of
" your despatches and we hope, that
" you will inquire of Mr. Legendre
" about them, who we hear, is now
" at Peking. We have never per-
" mitted the foreign interference. If
" you would think that we have
" permitted it, it is owing to your
" error. If the matter would take
" so much importance, Mr. Sagoshi-
" ma must have formally discussed
" it with us.
" Again, if you would think
" the aboriginals as the mastless
" savages, citing the communication
" of the last year, as a ground of
" your assertion, you would be inex-
" cusable very unreasonable. There is
" also the treaty, providing that
" an island belonging to each
" state

" state could not be invaded by another state, you argue, citing the words of Mr. Soyeshima, but we would not consent to your argument. We have no remembrance, whatever that we ever admitted the aboriginal territory as a masterless one." At this moment, Wan-Seang hinted to the secretary Tei, that, as there is very danger of the rupture of the friendly relation between the two governments, he would take care of it and endeavour to explain minutely his (Wan-Seang's) views to the ambassador Okuba. Besides, the Chinese officials said, that although the ambassador Okuba adduces the negotiation of the last year as an evidence, they never admitted the aboriginal Formosa

as being a masterless territory, but that they could not restrain him from returning home. To these words, the ambassador Okuba replied thus: "The communications done by Mr. Yonaguibara and our present discussions are only founded upon the desire to hold up the friendly relation between the two governments. But beginning with your answer to the two questions proposed by us, your correspondences have been worded, for the most part, very ambiguously, and especially your recent answers have many obscure points. As to the matters of the tribute paid by the aboriginals, the measures to be taken according to the desire of the foreign powers and the permis-

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permission given to the interfe-
rence of England and America,
I have many undisputable evidences
to rely on. I do not question
by conjectures. Your Excellencies
however, do not answer my ques-
tions article by article, and how
could your words, that if I
would again repeat my questions,
you would no more take notice
of them, be interpreted as mea-
ning to preserve the friendly
relations? I recognize the abo-
riginals, as the masterless savages,
but you affirm, that they are
subject to your jurisdiction and
would not answer my questions.
Such cannot be said as being
a mode of acting suitable to
a friendly power. I believe
the more for this, that they are

not subject to your jurisdiction.
Does not the despatch sent to
the American Consul at Kanagy,
by your local office of Jaiwan
foo, contradict your words, that
you would take measures for
yourselves, to satisfy the desires of
a foreign power? We take it as
a clear evidence on our part, that
you did not take the proper mea-
sures, in accordance to the desires
of our ambassador, communicated
last year. As to your question,
whether we would consent the inter-
ference of a person commissioned by
a foreign power, in the affairs
concerning our territory, we shall
never permit this to be done, be-
cause it is a very grave matter,
imparing our national sovereign-
ty. I do not desire for discus-
sions

"sions, but still the point Whether
the aboriginal Territory belongs to
your jurisdiction or not must be
clearly determined. If, however, you
should hold the discussion as impos-
sible and do not answer my ques-
tions, our discussions shall end to-
day and my object of mission shall
be arrested here. Our government only
wishes in your answer of the last year
As to the treaty, it is only a convention
between China and Japan and
does not relate to the masterless abo-
riginal territory. As the Formo-
san savages are the masterless tri-
bes, only one single communication
will be sufficient, but the discussions
With you on this subject shall indeed
be interminable. I intend therefore
to return home, in order to report
all these circumstances to our government."

(to be continued to the record No. 5.)

第七号處分書ノ續キ

(continued from the Record No 4.)

This day was fixed for the final settlement of the negotiation and the discussions occupied several hours, but the answers of the Chinese officials had no positive point to decide upon, being so ambiguous and contradictory, that they could not be committed to Writing. The above is, consequently, only a succinct account of the discussions of this day. The ambassador Onuki and his suite made an extraordinary efforts to preserve the friendly relation between the two countries, since they have arrived in China, and even though there might unfortunately occur the final breach of friendships, there should be no want of honour on our part. On the 9th inst. the Minister Yanagiwara received a dispatch from

from Shin-pau-ting and Pan-
woi and he ordered the secretary
Mr Yei, to communicate to a me-
mber of the Tsung-li-yamen, that
though Shin and Pan sent a
dispatch, but the negotiations hav-
ing been held with his yamen,
they should be made known of
all the circumstances by the Ya-
men and he does not therefore
return the answer to his despatch.

Our troops remaining for
a long time in the aboriginal
territory, they have been infected
with fever and the nine-tenth
of the officers and soldiers have
been suffering from it. The re-
ports and intelligences from them
have been consequently coming more
and more increasingly.

On the tenth day of the

same month the high commissioner
Okubo has sent a despatch to
Tsung-li-yamen, the summary
of which, in substance is as follows:
"I think, truth is one and things
" may be reduced to one and it
" may be owing to the want of re-
" flection of the great ministers of
" both countries, that the present ques-
" tion has not been brought to its
" proper conclusion. I, therefore have
" asked questions again and again;
" and did not expect that you should
" have considered our questions as
" the interrogations by a judge from
" your despatch under the date of
" the 20th day of August, which I
" have received, and from your con-
" versation, on the fifth day inst.
" which was the same as before
" in meaning. I have inferred that
any

" my mission has quite failed, and
" yet I did not despaired of it at once,
" but have taken great pains to state
" my opinion once more. To offer
" my argument in reference to that
" you have said, What the municie-
" pal laws are to individuals in
" a state, the articles of the treaty are
" to both countries. Now it is an
" ordinary course of the municipal
" laws that offenders should be pu-
" nished; and likewise if a nation
" should countenance the violation
" of an articles of the treaty by ano-
" ther nation and not accuse it of a
" crime, it may be said to be want-
" ing in its sense of observing the
" articles as well as the nation which
" has violated ~~the~~ them actually. If
" what you have said in a series
" of despatches should be a fact,
" my country may be said to have
" committed a crime to your country,
" a crime which could not be passed
" unpunished, and it should be pro-
" per course that your country should
" accuse my country a crime and
" then use the troops to enforce the
" right; and it is possible that you
" should have been patient without
" using arguments; and that you
" should rest satisfied without blow-
" ing a blow. Your authority is Wei-
" Wan-foo-shi, four of the books
" which have been cited in this
" book, one says that the civilization
" and instruction have not extended
" there; another says that it (aborii-
" ginal territory) has been beyond
" the jurisdiction; and third says
" that they (abriginal tribes) are
" aliens and a strong race. So

this

" this Taiwan for it be worthy to
" be considered as authority; if this be what may be considered
" a proof it is the ta-
" xation recorded in the books of
" the board of revenue but having
" examined this by facts we have
" found the taxes of the peddling
" communities have been imposed on
" the communities and not on the
" people, consequently no connection
" with aboriginal tribes. Are these
" taxes to be considered as a proof,
" In a former year, when some
" American castaways had misfor-
" tune the Chinese officers said in
" reply to the question of the Ame-
" rican consul, that the aboriginal
" territory was not within the Chinese
" Empire. Are the Chinese officers
" not contradicting themselves.

" What we call the friendly
" relations is that each of two
" countries should govern its own
" people and protect those of other
" lest they should injure and attem-
" pt to injure each other. Suppose
" that one country have permitted
" offences to pass unpunished to the
" injury of the other which was obliged
" to take care of itself and that the
" former did not return thanks to
" the latter, but treated it as an
" enemy. Is that what the friendly
" intercourse requires? Now we have
" caused our army to be fatigued;
" expended an amount of money;
" opened roads and cleared land;
" restrained the savages whose bar-
" barous acts are not allowed any
" longer; in order to remove one
" evil in the southern sea; and the
" success of our undertaking being
" now at hand we could not
" stop

" stop in the midst of it.

"To our great surprise, you
" have accused us of crimes and
" thrown the matter into confusion
" by talkativeness. you have spoken
" of "Encroachment and Breach of
" the contract" in allusion to us,
" and charged us with the offences
" which could not be pardoned.
" While the facts were not ascer-
" tained. When as a result of
" repeated discussions the matter
" have become evident, you have
" suddenly pretended that you did
" not like argument and that you
" could not support yourselves
" under the trouble of arguments
" As to the reception by the Em-
" peror of the Minister Yanagi-
" wara, it has been refused and
" you have said "We have made

" light of your country."

"From all this I infer that
" you have not treated our country
" with friendly feelings; and in
" need of what should I loiter
" at the gate of the capital? our
" government have sent ministers
" and commissioners many times
" and they can not be said to
" be wanting in attention; and
" I have acted with open heartedness
" and I presume, not even want-
" ing in kindness, to which of
" us, the blame of aggression can
" be imputed you or I? Now
" as five days can be allowed
" for your consideration if you
" are disposed to maintain the
" friendly relation, you shall
" change your intention and there
" should be some measures good

for

" for both. Our country is not
" possing the troops in the abori-
" ginal Formosa to thirst after
" land. Happiness of the people
" of both countries is what I wish
" very much. It is not but to
" perform my duty as commissioner
" as that I, who am going to
" leave here, have great interest
" in the friendly relation between
" both countries."

" On the 21st day of the same
" month we have received the answer
" in writing from Tsung-li-yamen,
" summary of which is as follows.
" With regard to the cases concern-
" ing England and America and
" which you have spoken about,
" I shall now take that of the
" latter for example. It was pro-
" ceeded with by the American

" minister who made application to
" our yamen in accordance to the
" treaty, and in fact, concluded by
" our country itself, and we have
" the precedents to follow as occasion
" requires; and it is different from
" the case of your wrecked people
" in this, that the event from which
" the case arose was before the con-
" firmation of the treaty between
" both countries, and on the confir-
" mation you did not make ar-
" guments about the subject and
" after the confirmation, your men
" of war were sent there, without
" making application to us. Now
" if they were discussed on the
" principles of international law,
" are all your proceedings in ac-
" cordance to these principles?
" There will be public opinion
about

" about them. Again the treaty
" between both countries is com-
" plete and perfect, and if this be
" considered as authority I am sure
" there will be the fair inference
" about them."

On the same day the Chi-
nese officers sent another letter
which said that the prince Kong
together with two Ministers Pan
and Chin, attended on the Em-
peror at Nanyen and they, there-
fore, shall have held a conference
among themselves after the return
of the Emperor the 4th day of
the tenth moon, and could not
send the answer within five day.

On the 12th day of the
same month the high commission-
er Okubo sent the answer in wri-
ting accepting the post ponement of three days more.

Translation

Memorandum of the
principle of the course
of actions taken towards
the aboriginal territory
of Formosa.
(No 8).

On the sixteenth day of the
tenth month, the reply from the
Young-li-yamen, and the letter
from Wan-xiang, have been receiv-
ed, the summary of which are
as follows:

"Our laws and rules can
" not be exercised in one line
" over the Empire, the officers civil
" and military, can not be or-
" ganized or posted in every Fun
" and Ken, the education can
" not be diffused equally throughout
the

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